

An overview of vulnerable marine ecosystem closures

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Bottom fishing targeting deep-sea fish stocks in areas beyond national jurisdiction (ABNJ) causes significant impacts to fragile ecosystems. In 2006, the UN General Assembly adopted resolution 61/105 calling for, *inter alia*, the closure of areas to bottom fishing where vulnerable marine ecosystems (VMEs) are known to occur or are likely to occur.

Experience with VME closures suggests that States, cooperating through regional fisheries management organisations (RFMOs), can respond to global calls to protect ecosystems. However, this response has been weaker than is necessary if marine biodiversity in ABNJ is to be adequately conserved.

Some examples of good practice have emerged. Members of the Commission for the Conservation of Antarctic Marine Living Resources (CCAMLR) have been reactive in reporting and following up on VME encounters, and have followed the advice of its Scientific Committee. The ongoing efforts of the North East Atlantic Fisheries Commission (NEAFC) and the OSPAR Commission to establish a “collective arrangement” for managing the North East Atlantic highlights one avenue for furthering integration between Regional Seas programmes and RFMOs.

However, States have been slow to agree on new closures and decisions made in RFMOs have not always followed the advice of their scientific bodies or the precautionary principle. Some areas have been left open for fishing where there is evidence of the presence of VMEs, and closures have sometimes been temporary or representative where longer-term or comprehensive closures would have been appropriate. Often closures cover depths that are technically unfishable in any case, or they do not cover relevant seamounts and other structures. When identifying VMEs, the focus has generally been on corals and sponges, rather than the wider range of species and habitats.

While progress is being made, there is therefore a strong likelihood that areas containing VMEs remain open to bottom fishing in ABNJ.

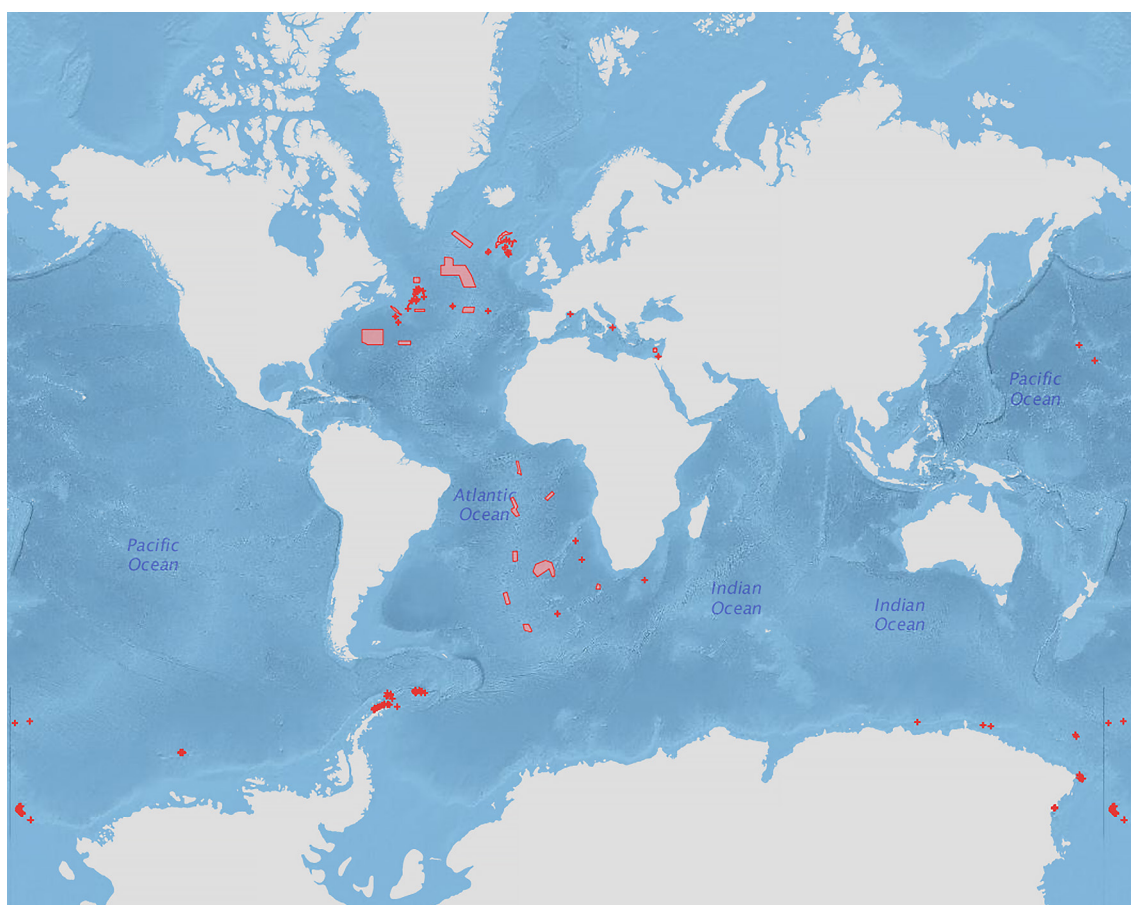
This article is based on research that has received a financial support from the French government in the framework of the programme « Investissements d'avenir », managed by ANR (French national agency for research) under the reference ANR-10-LABX-14-01. This research was also partly funded by the Fonds Français pour l'Environnement Mondial (FFEM), in the context of the project “Conservation and sustainable exploitation of seamount and hydrothermal vent ecosystems of the South West Indian Ocean in areas beyond national jurisdiction”.

KEY MESSAGES

- Bottom fishing can cause considerable damage to fragile marine ecosystems.
- The UN General Assembly has called on States, working through regional fisheries management organisations (RFMOs), to protect vulnerable marine ecosystems (VMEs), including by closing areas to fishing.
- Closures have been made in the North and Southeast Atlantic and in the Southern Ocean, but other regions are not yet covered by closures.
- Progress in developing and implementing closures has been slow and RFMO decisions do not always follow good practice; it is likely that VMEs remain at risk from bottom fishing.

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Map of VME closures



Source: FAO VME Database <http://www.fao.org/in-action/vulnerable-marine-ecosystems/vme-database/en/>.

Summary of VME closures

Body	Closures
North East Atlantic Fisheries Commission (NEAFC)	13 closures (approx. 375,000 km ²)
Northwest Atlantic Fisheries Organisation (NAFO)	20 closures (approx. 379,000 km ²)
South East Atlantic Fisheries Organisation (SEAFO)	12 closures (approx. 504,000 km ²)
North Pacific Fisheries Commission (NPFC)	Formal closures not yet implemented. Tentative agreement on two small seamount closures (approx. 550 km ²).
South Pacific Regional Fisheries Management Organisation (SPRFMO)	Formal closures not yet implemented.
Commission for the Conservation of Antarctic Marine Living Resources (CCAMLR)	4 closures (approx. 2,200 km ²), 76 VME risk areas closed pursuant to encounter protocols (approx. 820 km ²), 1 marine protected area (approx. 94,000 km ²). Blanket closure in relation to toothfish fisheries; commercial bottom trawling prohibited throughout the CCAMLR region.
South Indian Ocean Fisheries Agreement (SIOFA)	Formal closures not yet implemented. The South Indian Ocean Deepsea Fisheries Association (SIODFA) has declared 13 voluntary "Benthic Protected Areas".
General Fisheries Commission for the Mediterranean (GFCM)	3 closures (approx. 16,000 km ²). Prohibition of bottom trawling activities in waters deeper than 1000 m.